

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Drew Murphy	Team: Squad #10	CCRB Case #: 202301589	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/23/2023 8:57 PM	Location of Incident: Front of § 87(2)(b)	18 Mo. SOL 8/23/2024	Precinct: 33		
Date/Time CV Reported Thu, 02/23/2023 9:35 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 02/23/2023 9:35 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Joshua Moscoso	11260	960976	033 PCT
2. PO Raymond Perez	07205	970770	033 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Christopher Gayle	01792	972657	033 PCT
2. SGT Pedro Marcano	01837	940418	033 PCT
3. PO Christian Anasa	14741	967422	033 PCT
4. PO Steven Hussey	25023	967118	033 PCT
5. PO Jason Lewin	21104	971527	033 PCT
6. PO Vicente Matias	08123	965313	033 PCT
7. PO Neil Odonnell	03013	955270	033 PCT
8. PO Sheng Sun	07599	961338	033 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Joshua Moscoso	Abuse: Police Officer Joshua Moscoso stopped § 87(2)(b)	A . Unable to Determine
B . PO Raymond Perez	Abuse: Police Officer Raymond Perez stopped § 87(2)(b)	B . Unable to Determine
C . PO Joshua Moscoso	Force: Police Officer Joshua Moscoso used physical force against § 87(2)(b)	C . Unable to Determine
D . PO Raymond Perez	Force: Police Officer Raymond Perez used physical force against § 87(2)(b)	D . Unable to Determine
E . PO Joshua Moscoso	Abuse: Police Officer Joshua Moscoso improperly used his body-worn camera.	E . Substantiated
F . PO Raymond Perez	Abuse: Police Officer Raymond Perez improperly used his body-worn camera.	F . Substantiated
G . PO Joshua Moscoso	Discourtesy: Police Officer Joshua Moscoso spoke discourteously to § 87(2)(b)	G . Substantiated
H . PO Raymond Perez	Discourtesy: Police Officer Raymond Perez spoke discourteously to § 87(2)(b)	H . Within NYPD Guidelines

Officer(s)	Allegation	Inv. Div. Recommendation
I . PO Joshua Moscoso	Discourtesy: Police Officer Joshua Moscoso spoke discourteously to § 87(2)(b)	I . Within NYPD Guidelines
J . PO Joshua Moscoso	Abuse: Police Officer Joshua Moscoso threatened to arrest § 87(2)(b)	J . Substantiated
K . PO Joshua Moscoso	Force: Police Officer Joshua Moscoso used physical force against § 87(2)(b)	K . Substantiated
L . PO Joshua Moscoso	Discourtesy: Police Officer Joshua Moscoso spoke discourteously to § 87(2)(b)	L . Substantiated

Case Summary

On February 24, 2023, § 87(2)(b) filed this complaint on behalf of himself and § 87(2)(b) with the CCRB online.

On February 23, 2023, at approximately 8:57pm, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Joshual Moscoso and Police Officer Raymond Perez, both of the 33rd Precinct (PO Perez has since been re-assigned to Manhattan North Community Response Team), approached § 87(2)(b) with the intention of issuing him a summons (**Allegations A and B: Abuse of Authority—Stop, Unable to Determine**). When § 87(2)(b) fled the scene on foot, PO Moscoso and PO Perez pursued him. PO Moscoso grabbed § 87(2)(b) by the hood of his jacket and pulled him to the ground (**Allegation C: Force—Physical Force, Unable to Determine**) PO Perez got on top of § 87(2)(b) and used hand strikes on § 87(2)(b) back to gain compliance (**Allegation D: Force—Physical Force, Unable to Determine**). PO Moscoso and PO Perez activated their body-worn cameras after they caught up with § 87(2)(b) (**Allegations E and F: Abuse of Authority—Improper Use of Body-Worn Camera, Substantiated**). PO Moscoso yelled, “Get the fuck out of here,” at § 87(2)(b) (**Allegation G: Discourtesy—Word, Substantiated**) and PO Perez repeatedly told him, “Get on the fucking ground” and PO Moscoso added, “Give me your fucking hands” (**Allegation H and I: Discourtesy—Word, Within NYPD Guidelines**). Police Officer Christopher Gayle, Police Officer Christian Anasa, Police Officer Steven Hussey, Police Officer Jason Lewin, Police Officer Vicente Matias, Police Officer Neil O’Donnell, Police Officer Sheng Sun, and Sergeant Pedro Marciano, all of the 33rd Precinct, all responded to the scene (PO O’Donnell has since been promoted to sergeant and re-assigned to the 44th Precinct; Sgt. Marciano has since been reassigned to Narcotics Borough Manhattan North).

After § 87(2)(b) was handcuffed, PO Moscoso turned his attention to § 87(2)(b) who stood in the street about a car-length away, speaking with his girlfriend, § 87(2)(b) on the phone. PO Moscoso told § 87(2)(b) to move to the sidewalk repeatedly, threatened to place him in handcuffs if he did not step to the curb (**Allegation J: Abuse of Authority—Threat of Arrest, Substantiated**), and then pushed § 87(2)(b) on his right side (**Allegation K: Force—Physical Force, Substantiated**). As PO Mosco walked away, he yelled at § 87(2)(b) “Shut up, man, you ain’t nobody” (**Allegation L: Discourtesy—Word, Substantiated**).

The investigation obtained body-worn camera footage from PO Moscoso, PO Perez, PO Anasa, Sgt. Marciano, PO Gayle, PO Hussey, PO Lewin, PO Matias, PO O’Donnell, and PO Sun, the relevant portions of which will be discussed below (**BR 02-25**).

§ 87(2)(b) was arrested as a result of this incident for criminal possession of a controlled substance, resisting arrest, obstructing governmental administration (OGA), and disorderly conduct, documented in Arrest# § 87(2)(b) (**BR 01**).

Findings and Recommendations

Allegation (A) Stop: Police Officer Joshua Moscoso stopped § 87(2)(b)

Allegation (B) Stop: Police Officer Raymond Perez stopped § 87(2)(b)

Allegation (C) Force: Police Officer Joshua Moscoso used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Raymond Perez used physical force against § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Joshua Moscoso improperly used his body-worn camera.

Allegation (F) Abuse of Authority: Police Officer Raymond Perez improperly used his body-worn camera.

§ 87(2)(b) consistently stated (**BR 26, BR 29**) that he was talking on the phone with his girlfriend, § 87(2)(b) when he saw PO Moscoso and PO Perez chasing § 87(2)(b) in the street. § 87(2)(b) ran alongside § 87(2)(b) PO Moscoso, and PO Perez on the sidewalk.

From about 50 feet away, § 87(2)(b) saw PO Moscoso use both of his hands to shove the right side of § 87(2)(b) mid-section, causing § 87(2)(b) to trip into a parked gray minivan. Three other police officers joined PO Moscoso and PO Perez. Either PO Moscoso or PO Perez handcuffed § 87(2)(b) while he lay on his stomach in the street.

§ 87(2)(b) declined to provide a statement to the investigation (**BR 30**).

PO Moscoso stated (**BR 27**) that he was in the passenger seat of an unmarked NYPD vehicle when, from about a car-length away, he observed § 87(2)(b) pour liquor from a bottle wrapped in a brown bag into a shot glass and then drink from the shot glass. PO Moscoso got out of the car and approached § 87(2)(b) with the intention of issuing § 87(2)(b) a summons for drinking alcohol in public. § 87(2)(b) walked northbound on Amsterdam Avenue, turned around, said, “Suck my dick,” to PO Moscoso and then ran northbound on Amsterdam Avenue. PO Moscoso followed behind § 87(2)(b) on foot while PO Perez followed them in the car. § 87(2)(b) made a right turn on W. 158th Street. PO Perez turned right onto 158th Street and drove in front of § 87(2)(b) cutting him off. § 87(2)(b) double-backed and ran across Amsterdam Avenue, continuing to run in the middle of W. 158th Street in the direction of Broadway. As § 87(2)(b) ran, he pulled little things out of his pockets which looked like drugs to PO Moscoso and threw them out onto the street. PO Moscoso caught up with § 87(2)(b) in front of § 87(2)(b). § 87(2)(b) grabbed § 87(2)(b) hood and pulled him to the ground. PO Moscoso activated his BWC at this point. He waited to activate his BWC until he was able to interact with § 87(2)(b). Once on the ground, § 87(2)(b) flailed his arms around. PO Perez got on top of § 87(2)(b). PO Moscoso and PO Perez grabbed § 87(2)(b) by his hoodie and picked him up off the ground. They placed him against a parked car. Either PO Moscoso or PO Perez placed handcuffs on § 87(2)(b) although PO Moscoso could not recall which of them placed the handcuffs on him.

PO Perez stated (**BR 28**) that he was driving westbound on W. 157th when PO Moscoso told him that he had observed § 87(2)(b) pour what appeared to be liquor out of a small bottle into a small glass. PO Perez looked over and observed § 87(2)(b) pouring liquor, too. § 87(2)(b) sat in front of a deli on the southeast corner of W. 157th Street and Amsterdam Avenue. § 87(2)(b) recognized this corner as a corner where drug deals often took place. PO Moscoso got out of the vehicle and approached § 87(2)(b). PO Perez opened his door and was about to get out, when PO Moscoso yelled, “He’s running.” PO Perez’s description of § 87(2)(b) flight was consistent with PO Moscoso’s. PO Perez got out of his car and followed behind PO Moscoso who chased § 87(2)(b). § 87(2)(b) attempted to take off his jacket, but it rolled down to the crook of his elbows without falling off. PO Perez never observed § 87(2)(b) throw anything from his pockets.

In front of § 87(2)(b), § 87(2)(b) PO Moscoso grabbed § 87(2)(b) and pulled him to the ground. PO Perez did not see where on § 87(2)(b) person PO Moscoso grabbed. § 87(2)(b) fell on his back and then rolled over onto his stomach. PO Perez turned his BWC on at this point because he had been too focused on catching § 87(2)(b) earlier in the chase and was not focused on activating his BWC. PO Perez jumped on § 87(2)(b) flailed his arms. PO Perez grabbed one arm momentarily, and then § 87(2)(b) pulled it away and put both arms under his stomach. PO Perez continually said, “Give me your hands,” as he made hand strikes across the middle of § 87(2)(b) back.

In PO Moscoso’s BWC (**BR 04-05**), at the 0:53 timestamp, PO Moscoso catches up to § 87(2)(b) and places his right hand on § 87(2)(b) upper back. § 87(2)(b) runs into the front of a parked SUV. PO Moscoso appears to get ahold of the hood of § 87(2)(b) coat. PO Moscoso continues to run forward, the force of which pulls § 87(2)(b) down, his back landing on the street. He then rolls over into a sitting position. PO Perez then jumps on top of § 87(2)(b). The audio activates at 1:00, when PO Moscoso activated his camera. PO Moscoso’s camera does not capture what actions PO Perez takes while he is on top of § 87(2)(b).

In PO Perez’s BWC (**BR 06-07**), at the 0:50 timestamp, PO Perez catches up to § 87(2)(b) who is seated on the street. PO Perez grabs § 87(2)(b) armpits and attempts to pull him up. After a moment, PO Perez gets on top of § 87(2)(b). The angle of the camera at this point is pressed

against § 87(2)(b) back and all goes black. The audio activates at 1:00, when PO Perez activated his camera.

According to a TRI# § 87(2)(b) prepared by Sgt. Marcano (**BR 31**), PO Moscoso approached § 87(2)(b) who was seated in a chair on the northeast corner of W. 157th Street and Amsterdam Avenue. § 87(2)(b) stood up and ran northbound on Amsterdam Avenue, and then ran westbound on W. 158th street. PO Moscoso grabbed § 87(2)(b) hood which caused him to fall down to the ground, at which point PO Perez used hand strikes across § 87(2)(b) body to gain his compliance. § 87(2)(b) was handcuffed and taken to the 33rd Precinct. § 87(2)(b) complained of pain and was subsequently removed to § 87(2)(b) Hospital via an FDNY ambulance.

PO Perez's memo book contains an entry about § 87(2)(b) arrest (**BR 32**). The entry is timestamped at 8:57pm and took place in front of § 87(2)(b). The entry also contains the same TRI details recorded above.

The incident resulted in Arrest # § 87(2)(b) (**BR 01**). § 87(2)(b) was arrested at approximately 9:07pm in front of § 87(2)(b). The arrest details specify that § 87(2)(b) was in possession of a controlled substance with an intent to sell. When PO Moscoso and PO Perez attempted to apprehend § 87(2)(b) he ran from police officers, and later flailed his arms and tensed up his body to prevent PO Moscoso and PO Perez from arresting him. The corresponding complaint report was generally consistent with the arrest report (**BR 33**).

Property Vouchers prepared by PO Anasa (**BR 49**) note that when § 87(2)(b) was arrested he had in his possession 20 capsules of crack cocaine and eight bags of marijuana.

Event# § 87(2)(b) was started as a possible crime at 9:01pm and finalized as a 92C (crime arrest) at approximately 10:46pm (**BR 33**).

People v. De Bour (40 N.Y.2d 210) found that officers are allowed to forcibly stop and detain a person when they have reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor (**BR 50**).

Patrol Guide procedure 221-02 (**BR 36**) states that officers may use force when individuals are actively resisting officer's attempts at control, including bracing, tensing, pushing, or verballing signaling an intention to avoid or prevent being taken into or retained in custody.

Patrol Guide procedure 221-01 (**BR 35**) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody. In determining whether the use of force is reasonable, members of the service should consider the following: 1) The nature and severity of the crime/circumstances. 2) Actions taken by the subject. 3) Duration of the action. 4) Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders. 5) Whether the subject is actively resisting custody. 6) Whether the subject is attempting to evade arrest by flight. 7) Number of subjects in comparison to the number of MOS. 8) Size, age, and condition of the subject in comparison to the MOS. 9) Subject's violent history, if known. 10) Presence of hostile crowd or agitators. 11) Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

Patrol Guide procedure 212-123 (**BR 37**) states that it is mandatory for all uniformed members of the service to activate BWC prior to engaging in or assisting another uniformed member of the service with police actions including interactions with persons suspected of criminal activity, use of force, and arrests.

Although PO Moscoso and PO Perez consistently stated that their initial reason for stopping § 87(2)(b) was because they witnessed him drink alcohol in public, the arrest report did not cite § 87(2)(b) alleged public drinking. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g) it is recommended that **Allegations A and B** be closed as **Unable to Determine**.

§ 87(2)(g)
it is recommended that **Allegations C and D** be closed as **Unable to Determine**.

§ 87(2)(g)
it is recommended that **Allegations E and F** be **Substantiated**.

Allegation (G) Discourtesy: Police Officer Joshua Moscoso spoke discourteously to § 87(2)(b)

Allegation (H) Discourtesy: Police Officer Raymond Perez spoke discourteously to § 87(2)(b)

Allegation (I) Discourtesy: Police Officer Joshua Moscoso spoke discourteously to § 87(2)(b)

These allegations derive from BWC.

In PO Moscoso's BWC (**BR 04-05**), after PO Moscoso brings § 87(2)(b) to the ground, the audio turns on at approximately the 0:59 timestamp, which is at approximately 8:58:33pm. PO Perez leans over § 87(2)(b) on the ground. PO Perez says, "get on the fucking ground," and simultaneously someone says, "Get the fuck out of here." PO Moscoso turns around and walks around PO Perez and § 87(2)(b) struggling on the ground. At the 1:07 timestamp, PO Perez repeats, "Get on the fucking ground." Shortly after saying this, someone says, "Give me your hands, give me your fucking hands."

In PO Perez's BWC (**BR 06-07**), the audio turns on at approximately the 0:59 timestamp, which is at approximately 8:58:38pm. The audio of this footage is generally consistent with PO Moscoso's BWC, however, since it was activated after PO Moscoso activated his BWC, it does not capture the first "get on the fucking ground," or "get the fuck out of here." Sgt. Marciano's first excerpt of BWC is generally consistent with PO Perez's BWC (**BR 08-09**).

§ 87(2)(b) did not mention police officers using discourteous language (**BR 26**).

§ 87(2)(b) declined to provide a statement to the investigation (**BR 30**).

PO Moscoso stated (**BR 27**) that he had no independent recollection of ever saying, "Get the fuck out of here." After reviewing his own BWC, he told the investigation that it was clear that either he or PO Perez said, "Get the fuck out of here," but he could not speak to which of them said it.

PO Perez stated (**BR 28**) that when he was on top of § 87(2)(b) started to get up. PO Perez told § 87(2)(b) "Get on the fucking ground." PO Perez used the word, "fucking," because § 87(2)(b) had run from the police, resisted arrest by flailing his arms, was non-compliant with verbal orders, and then again tried to flee police by trying to stand up. PO Perez thought that it was necessary to elevate his tone of voice to demonstrate that it was important for § 87(2)(b) to comply with his directives. PO Perez, however, did not ever tell § 87(2)(b) to, "Give me your fucking hands." The investigation showed PO Perez Sgt. Marciano's BWC from the 0:55 timestamp to the 1:09 timestamp. PO Perez heard someone say, "Give me your fucking hands," however he could not say with any certitude who said this.

It is undisputed that PO Perez said, "Get on the fucking ground," and simultaneously another voice said, "Get the fuck out of here." Shortly after this, PO Perez repeated, "Get on the fucking ground," and the other voice said, "Give me your fucking hands." PO Perez stated that he used the word, "fuck," because § 87(2)(b) had run from the police, flailed his arms, was non-compliant, attempted to stand up, and he thought it was necessary to elevate his tone to gain

compliance of § 87(2)(b) PO Moscoso had no independent recollection of using profanity. Considering that BWC shows one of the police officers say, “Get the fuck out of here,” simultaneously with PO Perez stating, “Get on the fucking ground,” followed by PO Perez saying “Get on the fucking ground,” followed by another voice saying, “Give me your fucking hands,” and PO Moscoso and PO Perez were still the only police officers present at the scene at this time, it can be determined through a preponderance of the evidence that PO Moscoso said, “Get the fuck out of here,” as well as, “Give me your fucking hands.”

§ 87(2)(b) was arrested for criminal possession of a controlled substance in the fifth degree with intent to sell, in violation of PL 220.06, as indicated by arrest report# § 87(2)(b) (BR 01).

Patrol Guide procedure 200-02 states (BR 38), that the NYPD’s mission is to protect the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect. In doing so, they pledge to maintain a higher standard of integrity than is generally expected of others.

Per DAO-DCT Case Number 2015-15012 (BR 39), discourteous language may be excusable when an officer is speaking in the context of a dynamic situation over which he is still attempting to gain control. However, discourteous statements are prohibited when they serve no legitimate purpose but to belittle the civilian.

§ 87(2)(g)

it is recommended that **Allegation G** be **Substantiated**.

Considering that it was undisputed that § 87(2)(b) ran from police and then evaded handcuffing once he was brought to the ground, § 87(2)(g)

it is recommended that **Allegations H and I** be closed as **Within NYPD Guidelines**.

Allegation (J) Abuse of Authority: Police Officer Joshua Moscoso threatened to arrest

§ 87(2)(b)

Allegation (K) Force: Police Officer Joshua Moscoso used physical force against § 87(2)(b)

§ 87(2)(b) stated (BR 26) that he stepped off the sidewalk and onto the street, about two to three car-lengths away from where police officers surrounded and handcuffed § 87(2)(b). § 87(2)(b) yelled “OK, you guys got him! Just please don’t hurt him!” PO Moscoso told § 87(2)(b) “Get on the sidewalk, or I’m putting you in cuffs.” PO Moscoso approached § 87(2)(b) repeating that he would place the latter into handcuffs if he did not step onto the sidewalk. § 87(2)(b) turned and walked toward the curb and vocalized that he was moving toward the sidewalk. PO Moscoso shoved § 87(2)(b) hard on his right shoulder.

PO Moscoso stated (BR 27) that after § 87(2)(b) was handcuffed, § 87(2)(b) stepped onto the street holding his phone up, as if he were video recording, and stood a few feet away from PO Moscoso, PO Perez, and § 87(2)(b). PO Moscoso and PO Perez picked up § 87(2)(b) jacket and phone. They also searched for drugs that § 87(2)(b) threw from his pockets as he ran from the police officers, by retracing the steps § 87(2)(b) made when he ran from police. § 87(2)(b) was the only bystander who stood on the street. PO Moscoso told § 87(2)(b) that he was allowed to record, but that he must remain on the sidewalk. § 87(2)(b) yelled and cursed at PO Moscoso and asked him, “Do you know who I am?” PO Moscoso told § 87(2)(b) that if he did not step onto the sidewalk, he would place him into handcuffs. PO Moscoso told the investigation that he could have arrested § 87(2)(b).

for disorderly conduct, due to him filming, not obeying his command to stand on the sidewalk, causing a scene, and for yelling at the top of his voice. PO Moscoso also felt that § 87(2)(b) was impeding his and PO Perez's investigation. PO Moscoso placed his hand on § 87(2)(b) arm and guided him to the sidewalk. § 87(2)(b) muscles tensed up as PO Moscoso touched him. § 87(2)(b) walked with PO Moscoso toward the sidewalk. After his interaction with § 87(2)(b) PO Moscoso and PO Perez canvassed for anything that § 87(2)(b) may have thrown out of his pockets during the pursuit, by retracing § 87(2)(b) route.

PO Perez stated (**BR 28**) that he had no interaction with § 87(2)(b) nor any other witness at the scene. PO Perez never observed PO Moscoso argue with any witnesses near the scene of the arrest. PO Perez did not observe any witnesses stand on the street or the sidewalk near the arrest of § 87(2)(b). PO Moscoso never relayed any information to PO Perez regarding an interaction that he had with any witness.

PO Moscoso's BWC shows that (**BR 04-05**), beginning at the 1:55 timestamp, PO Moscoso tells PO Perez to "check the whole route." PO Perez walks eastbound, in the direction that § 87(2)(b) ran from prior to PO Perez and PO Moscoso apprehending him. At the 2:10 timestamp, PO Moscoso turns away from the handcuffed § 87(2)(b) and positions himself facing westbound toward Broadway. § 87(2)(b) stands one car length away on the side of the road. PO Moscoso asks, "Are you going to be on the sidewalk, or no?" § 87(2)(b) says, "I'm gonna stand on the sidewalk, but I know him," referring to § 87(2)(b). PO Moscoso continues to demand that § 87(2)(b) move to the sidewalk and § 87(2)(b) standing still, says to give him a second. PO Moscoso says, "Go on the sidewalk, or I'll put you in cuffs." § 87(2)(b) says, "That's fine, give me a second." PO Moscoso places his left hand on § 87(2)(b) right side, just below his shoulders. He continues to order § 87(2)(b) to the sidewalk and § 87(2)(b) continues to ask for a second as he shuffles slowly toward the sidewalk. § 87(2)(b) says, "Stop pushing me." PO Moscoso yells, "It don't matter!" and pushes § 87(2)(b) toward the sidewalk. No other BWC captures the exchange between PO Moscoso and § 87(2)(b) (**BR 02-03; 06-25**).

It is undisputed that § 87(2)(b) ran west on W. 158th Street between Amsterdam Avenue and Broadway and was brought to the ground and placed into handcuffs on the street. Following § 87(2)(b) arrest, police officers canvassed for drugs § 87(2)(b) dropped by retracing his steps along this route. PO Moscoso turned away from § 87(2)(b) and faced § 87(2)(b) who stood in the street about a car-length away, further west. § 87(2)(b) stated that he was on the phone with § 87(2)(b) while PO Moscoso stated that § 87(2)(b) was recording the scene with his phone. PO Moscoso instructed § 87(2)(b) to get to the sidewalk, and though § 87(2)(b) verbally stated that he would comply, he remained standing on the street. PO Moscoso threatened to place him into handcuffs if he did not get to the sidewalk. When § 87(2)(b) did not comply with this direction, § 87(2)(b) stated that PO Moscoso shoved him on his right shoulder. PO Moscoso stated he placed his hand on § 87(2)(b) arm and guided him toward the sidewalk. PO Moscoso's BWC shows that he pushed § 87(2)(b) on the side of his body just below his right shoulder.

Per Patrol Guide procedure 208-01 (**BR 40**), officers can make an arrest without a warrant for an offense when there is reasonable cause to believe offense is committed in his presence, or for a crime (within the presence or not) and reasonable cause exists that arrested person committed the crime.

Administrative Guide procedure 304-21 (**BR 41**) states, "The right to lawfully observe and/or record police activity extends to individuals in public places, such as streets, sidewalks, and parks, as well as private property in which the individual has a legal right to be present, such as buildings, lobbies, workplaces, or an individual's own property. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/recording."

Per Patrol Guide Procedure 221-01 (BR 35), force may be used when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

NY Penal Law § 195.05 (BR 43) states that “a person is guilty of Obstructing Government Administration in the Second Degree when that person intentionally [obstructs, impairs or perverts the administration of law or other government function or] prevents or attempts to prevent a public servant from performing an official function.”

NY Penal Law § 140.20 (BR 42) states that “a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: (1) He engages in fighting or in violent, tumultuous or threatening behavior; or (2) He makes unreasonable noise; or (3) In a public place, he uses abusive or obscene language, or makes an obscene gesture; or (4) Without lawful authority, he disturbs any lawful assembly or meeting of persons; or (5) He obstructs vehicular or pedestrian traffic; or (6) He congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or (7) He creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.

Although § 87(2)(b) stood in the road a car length away from where § 87(2)(b) was arrested, he did not attempt to intervene in the arrest of § 87(2)(b). Furthermore, by the time PO Moscoso interacted with § 87(2)(b) was already handcuffed and any continued investigation into whether § 87(2)(b) threw contraband from his pockets happened in the opposite direction from where § 87(2)(b) stood. § 87(2)(g)

it is recommended that **Allegation J** be **Substantiated**.

§ 87(2)(b) was not initially compliant with PO Moscoso's orders to step to the sidewalk, however, when PO Moscoso placed his hand on § 87(2)(b) side, § 87(2)(b) though still verbally resistant, shuffled in the direction of the sidewalk, at which point PO Moscoso pushed him on his side. § 87(2)(g)

it is recommended that **Allegation K** be **Substantiated**.

Allegation (L) Discourtesy: Police Officer Joshua Moscoso spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated (BR 26) that after he was pushed, he turned around and yelled and cursed at PO Moscoso. § 87(2)(b) told PO Moscoso that he was on the phone and that there was a third party, § 87(2)(b) who could hear PO Moscoso. He also told PO Moscoso that he would have his job because PO Moscoso shoved him. PO Moscoso responded, “Cool, I don't give a fuck.”

Neither § 87(2)(b) nor § 87(2)(b) provided statements to the investigation.

PO Perez (BR 28) stated that he was not present for any interaction between PO Moscoso

and § 87(2)(b)

In PO Moscoso's BWC (**BR 04-05**), at the 2:32 timestamp, § 87(2)(b) steps onto the sidewalk and yells at PO Moscoso, "I'm on the fucking phone." PO Moscoso says, "I don't care where you at," and turns around, walking toward his police vehicle. § 87(2)(b) continues to yell, "Do you want a fucking lawsuit? I know the nigga § 87(2)(b) PO Moscoso yells back, "Shut up, man, you ain't nobody." PO Moscoso's BWC never captures PO Moscoso, nor any other police officer, telling § 87(2)(b) "I don't give a fuck."

In Sgt. Marcano's first excerpt of BWC (**BR 08-09**), at the 2:33 timestamp, PO Moscoso says, "Shut up, man, you ain't nobody," however, it does not visually capture the exchange. No other BWC captures the exchange between PO Moscoso and § 87(2)(b) (**BR 02-03; 06-07; 10-25**).

PO Moscoso initially stated (**BR 27**) that he did not ever call § 87(2)(b) names or use any profane language with him. After the investigation showed PO Moscoso the excerpt from his BWC described above, PO Moscoso amended his previous statement and noted that he told § 87(2)(b) "Shut up, you ain't nobody." PO Moscoso told § 87(2)(b) that he was "nobody," because he was nobody of significance related to the investigation and arrest of § 87(2)(b).

Although § 87(2)(b) stated that PO Moscoso told him, "Cool, I don't give a fuck," comprehensive BWC from PO Moscoso captures PO Moscoso telling § 87(2)(b) "Shut up, you ain't nobody" as he walked to his car.

Patrol Guide procedure 200-02 states that the NYPD's mission is to protect the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect. In doing so, they pledge to maintain a higher standard of integrity than is generally expected of others (**BR 38**).

Per DAO-DCT Case Number 2015-15012, discourteous language may be excusable when an officer is speaking in the context of a dynamic situation over which he is still attempting to gain control. However, discourteous statements are prohibited when they serve no legitimate purpose but to belittle the civilian (**BR 39**).

PO Moscoso told § 87(2)(b) that he was "nobody," because he was unrelated to the investigation and arrest of § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations L** be **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 44**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 45**).
- PO Moscoso has been a member of service for seven years and has been a subject in 13 CCRB complaints and 32 allegations, none of which were substantiated. § 87(2)(g)
- PO Perez has been a member of service for two years and has been a subject in four CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On August 24, 2023, a Notice of Claim search request was submitted to the New York City Office of the Comptroller, the results of which will be added to the case file upon receipt (**BR 46**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 10

Investigator:	<u>Drew Murphy</u>	<u>Inv. Drew Murphy</u>	<u>11/13/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>11/14/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date